

		Based on the foregoing, the SAC alleges facts showing despicable conduct that was carried on by State Farm with a willful and conscious disregard of Plaintiff's rights under the partial AOBs, and of the insureds, sufficient to establish malice or oppression to support a claim for punitive damages against a corporation. The allegations made on "information and belief" are supported by factual allegations, i.e., State Farm's denial or refusal to honor 23 separate valid Appraisal Demands, leading Plaintiff believe the allegations to be true. Additionally, State Farm cites to no authority requiring that a pleading identify an officer, director, or managing officer by name. The added allegations in the SAC sufficiently allege authorization and/or ratification by State Farm on the part of officers and/or directors and/or managing agents based on a coordinated, company-wide practice or policy of rejected appraisal demands whenever presented under an AOB. State Farm's motion to strike is DENIED. State Farm to file and serve an Answer within 10 days. The Case Management Conference is continued to September 3, 2026 at 1:30 p.m. <i>Plaintiff to give notice.</i>
108	Castillo vs. Aesthetic Management Partners, 25-01521920	<i>Off-Calendar.</i>
109	Cervantes vs. Verdin, 24-01418094	Plaintiffs Juan Cervantes, Glendi Felix, Lucio Perez Lara, Martin Ramirez, Guadalupe Ramirez, Hector Mendez Rama, Alberto Ivan Mendez Rama, Ever Antonio Franco Zelaya, Sandy Yanet Avalos Ríos, Filiberto Lopez, Raul Mojica, Salvador Nava Ceja, Oscar Campos, Deiby Noe Medrano Franco, Delvina Franco Zelaya, Rosa Franco, Carlos Daniel Franco Zelaya, Ana Griselda Franco, Priscilla Mejia, Melquiades Gregorio, Victor Sanchez, Joel Mojica, David Kenduck, and Jacob Vernezobre ("Plaintiffs") move for summary judgment against defendant Jonathan Verdin d/b/a Achilles Investments LLC ("Defendant") on their causes of action for fraud/intentional misrepresentation and breach of written contract. On January 15, 2026, plaintiff Juan Cervantes's Motion to Deem Facts Admitted was GRANTED and his Requests for Admission, Set One, to Defendant were deemed admitted. The admissions establish that Defendant entered into written contracts with Plaintiffs and promised multiple returns on their investments, Defendant received money pursuant to